



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ

Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
Email Address: sbprietodiaz@gmail.com



Office of the Secretary to the Sangguniang Bayan

SBOC - 03192024 - 117

1st Endorsement
March 19, 2024

OFFICE OF THE SANGGUNIANG BAYAN

RELEASED

DATE: 03/19/24 TIME: 10:05 AM

BY: *[Signature]* REF. NO. 117

Respectfully transmitted to **HON. ROMEO D. DOMASIAN**, Municipal Mayor this municipality, the herein attached Resolution No. 075-2024 entitled: **"A RESOLUTION AUTHORIZING HON. ROMEO D. DOMASIAN, MUNICIPAL MAYOR TO ENTER INTO A CONTRACT OF AGREEMENT WITH ALHANDRAX CONSTRUCTION AND SUPPLY, REPRESENTED BY MR. ALBERT Y. LUSTESTICA, PROPRIETOR, FOR THE REHABILITATION AND IMPROVEMENT OF EMERGENCY OPERATION CENTER IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON"** for his information and appropriate action.

OFFICE OF THE
MUNICIPAL ACCOUNTANT
PRIETO DIAZ 4711

RECEIVED

DATE: 3-19-24 TIME: 2:05 PM

BY: *[Signature]*

[Signature]
BERNADETTE R. ESPEÑA – YAO
Secretary to the Sangguniang Bayan

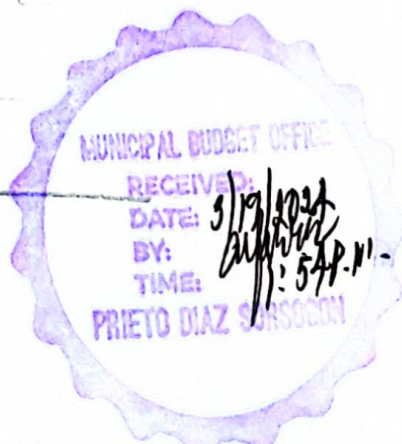
- Mr. Christian Lloyd Golena
MHRMO, BAC Chairman
- ~~Ms. Gemma Ferrer~~
Municipal Treasurer
- Ms. Maribel Aldon
Municipal Accountant
- Ms. Linda Lim
MBO

OFFICE OF THE MAYOR
LGU PRIETO DIAZ, SORSOGON

RECEIVED

By: *[Signature]*
Date: *[Signature]*
Time: 1:45

[Signature]
3/19/24
2:08 PM



[Signature] MTO
RECEIVED
3/19/24



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON MARCH 11, 2024 AT SAN RAMON BARANGAY HALL, SAN RAMON, PRIETO DIAZ, SORSOGON

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Joseph H. Yap, Jr.	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member

ABSENT:

Hon. Bienvenido D. Ayo, Jr.	S. B. Member
Hon. Rene Joseph D. Domasian	PPSK Pres./S.B. Member

RESOLUTION NO. 075-2024

Introduced by Hon. Antonio Emano, Jr.

A RESOLUTION AUTHORIZING HON. ROMEO D. DOMASIAN, MUNICIPAL MAYOR TO ENTER INTO A CONTRACT OF AGREEMENT WITH ALHANDRAX CONSTRUCTION AND SUPPLY, REPRESENTED BY MR. ALBERT Y. LUSTESTICA, PROPRIETOR, FOR THE REHABILITATION AND IMPROVEMENT OF EMERGENCY OPERATION CENTER IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, endorsed by the Municipal Mayor, Hon. Romeo Domasian, to the Sangguniang Bayan was the Contract of Agreement with Alhandrax Construction and Supply for the grant of authority from the Sangguniang Bayan as one of the requirements for projects chargeable to LDRR Fund;

WHEREAS, Alhandrax Construction and Supply shall be the supplier / contractor for the rehabilitation and improvement of emergency operation center for the use of OMDRRMO in the total amount of P 4,980,000.00 only;

WHEREAS, this collegial body is cognizant that pertinent documents have been submitted and complied with by the said Contractor through the Bids and Awards Committee, in compliance with the 2016 Revised IRR of R.A. No. 9184;

WHEREAS, on motion of Hon. Alice Emano, duly seconded by Hon. Rodolfo Diolata;

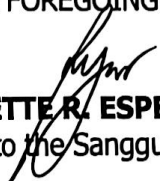
NOW, THEREFORE, be it as it is

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian, to enter into a Contract of Agreement with Alhandrax Construction and Supply, Mr. Albert Y. Lustestica, Proprietor, for the rehabilitation and improvement of emergency operation center in the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, transmit this resolution to Hon. Romeo D. Domasian, Municipal Mayor; copy furnished Mr. Christian Lloyd Golena, MHRMO, BAC Chairman; Ms. Gemma Ferrer, Municipal Treasurer; Ms. Maribel Aldon, Municipal Accountant; Ms. Linda Lim, MBO; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

CONTRACT AGREEMENT

THIS AGREEMENT made the _____ day of _____, 2024 between **LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON** of the Philippines (hereinafter called "the Entity") of the one part and **ALHADRAX CONSTRUCTION AND SUPPLY OF FRIVALDO ST. PRIETO DIAZ, SORSOGON** (hereinafter called "the Supplier") of the other part;

WHEREAS, the Entity invited Bids for certain goods and ancillary services, particularly ***Rehabilitation and Improvement of Emergency Operation Center*** and has accepted a Bid by the Supplier for the supply of those goods and services in the sum of **FOUR MILLION NINE HUNDRED EIGHTY THOUSAND PESOS ONLY (Php 4,980,000.00)** (hereinafter called "the Contract Price").

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract referred to.
2. The following documents as required by the 2016 revised Implementing Rules and Regulations of Republic Act No. 9184 shall be deemed to form and be read and construed as integral part of this Agreement, viz.:
 - i. Philippine Bidding Documents (PBDs);
 - i. Schedule of Requirements;
 - ii. Technical Specifications;
 - iii. General and Special Conditions of Contract; and
 - iv. Supplemental or Bid Bulletins, if any
 - ii. Winning bidder's bid, including the Eligibility requirements, Technical and Financial Proposals, and all other documents or statements submitted;

Bid form, including all the documents/statements contained in the Bidder's bidding envelopes, as annexes, and all other documents submitted (e.g., Bidder's response to request for clarifications on the bid), including corrections to the bid, if any, resulting from the Procuring Entity's bid evaluation;
- iii. Performance Security;
- iv. Notice of Award of Contract; and the Bidder's conforme thereto; and
- v. Other contract documents that may be required by existing laws and/or the Procuring Entity concerned in the PBDs. **Winning bidder agrees that additional contract documents or information prescribed by the GPPB that are subsequently required for submission after the contract execution, such**

as the Notice to Proceed, Variation Orders, and Warranty Security, shall likewise form part of the Contract.

3. In consideration for the sum **FOUR MILLION NINE HUNDRED EIGHTY THOUSAND PESOS ONLY (Php 4,980,000.00)** or such other sums as may be ascertained **ALHADRAX CONSTRUCTION AND SUPPLY** agrees to ***Rehabilitation and Improvement of Emergency Operation Center*** in accordance with his/her/its Bid.
4. The **LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON** agrees to pay the above-mentioned sum in accordance with the terms of the Bidding.

IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with the laws of the Republic of the Philippines on the day and year first above written.



HON. ROMEO D. DOMASIAN
Municipal Mayor

for:

**LOCAL GOVERNMENT UNIT
OF PRIETO DIAZ, SORSOGON**

ALBERT Y. LUSTESTICA
Proprietor

for:

**ALHADRAX CONSTRUCTION
AND SUPPLY**

Republic of the Philippines)
Province of _____) S.S.

ACKNOWLEDGEMENT

BEFORE ME, Notary Public, for and in the _____ personally appeared
HON. ROMEO D. DOMASIAN, with ID No. **E05-99-017672** issued on
_____ at _____ in the capacity as Municipal Mayor of Prieto Diaz,
Sorsogon, representing the **LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON**
and **ALBERT Y. LUSTESTICA** with ID No. _____ issued on
_____ at _____, representing
ALHADRAX CONSTRUCTION AND SUPPLY known to me and known to be the same
person who executed the foregoing CONTRACT OF AGREEMENT and they acknowledge to me
the same as their true act and their deed in behalf of the parties they represent.

This instrument consists of FOUR (4) copies including this page on which the
ACKNOWLEDGEMENT is written duly signed by the contracting parties and their witnesses at
the bottom of the page two of the instrument and on the left margin of the other page.

IN WITNESS WHEREOF, I have hereunto affixed my signature and seal this
_____ day _____ of _____ at
_____.

Doc. No. _____
Page No. _____
Book No. _____
Series of _____

Municipality of Prieto Diaz:



By: **HON. ROMEO D. DOMASIAN**

Bidder/Supplier:

By: **ALBERT Y. LUSTESTICA**